

Court No. - 1

Case :- WRIT - C No. - 19984 of 2019

Petitioner :- Vijay Kumar

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Ashish Bajpayee

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Ramesh Sinha,J.

Hon'ble Vivek Varma,J.

Heard Sri Ashish Bajpayee, learned counsel for the petitioner, learned Standing Counsel for the respondent nos.1, 3 and 4, and Sri Narendra Kumar Tiwari, learned counsel for the respondent no.2.

By means of this writ petition, the petitioner has come up before this Court with the prayer to quash the impugned demand notice dated 01.2.2019 issued by the respondent no.2 and recovery citation dated 19.04.2019 issued by the respondent no.4.

Learned counsel for the petitioner states that the impugned demand notice, which has been issued against the petitioner, is against the principle of natural justice, hence, the writ petition is maintainable.

Against the order impugned, the petitioner has right of appeal under Section 127 of Electricity Supply Code, 2005, as has been pointed out by learned counsel for the respondents.

We are not inclined to interfere in the matter. The writ petition is, accordingly, dismissed on the ground of statutory alternative remedy.

It is open to the petitioner to take recourse to the statutory remedy available to him under the law. In case, the petitioner files an appeal, needless to say that the same shall be decided in accordance with law.

(Vivek Varma, J.) (Ramesh Sinha,J.)

Order Date :- 10.6.2019

Ajeet